

22STCV03287 22STCV03287

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-23

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Case Number: 22STCV03287 Hearing Date: July 23, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

23, 2026

CASE NUMBER

22STCV03287

MOTIONS

(1)

Motion to Compel Second Deposition of Plaintiff

(2)

Motion to Continue Trial

MOVING PARTIES

(1)

Defendants Brennan Lindner and Generic Events

(2)

Defendants Brennan Lindner and Generic Events

OPPOSING PARTY

(1)

Plaintiff Kathryn Lewis

(2)

none

MOTIONS

This case arises from allegations of a motor vehicle collision with a bicyclist on Pacific Coast Highway ("PCH") during the Malibu Triathlon in 2021. Approximately 2,000 feet southeast of the intersection of PCH and Guernsey Drive, Defendant Zoe Dimmel-Alexeff made a U-turn, colliding with Plaintiff, who was riding in a separated bike lane.

On January 27, 2022, Plaintiff filed the instant lawsuit alleging five causes of action for (1) general negligence; (2) automobile negligence; (3) negligent act or omission of public entity or employee; (4) premises liability; and (5) dangerous condition on public property.

The Second Cause of Action is alleged only against Defendants Zoe Dimmel-Alexeff and Alexander Alexeff.

On March 17, 2026, the Court granted Defendants USA Triathlon of Colorado and USA Triathlon's motion for summary judgment, but denied the motion as to Defendants Malibu Triathlon Productions, LLC; Brennan Lindner; and Generic Events. Judgment was entered as to the two USA Triathlon Defendants on June 4, 2026.

Moving Defendants Brennan Lindner and Generic Events now move to take a second deposition of Plaintiff, and to continue the trial and related pre-trial dates. Plaintiff opposes the motion to compel a second deposition, but filed a notice of non-opposition to the motion to continue the trial and related dates. Moving Defendants reply.

ANALYSIS

1.

Motion to

Compel Second Deposition

(a) Once any party has

taken the deposition of any natural person, including that of a party to the action, neither the party who gave, nor any other party who has been served with a deposition notice pursuant to Section 2025.240 may take a subsequent deposition of that deponent.

(b) Notwithstanding

subdivision (a), for good cause shown, the court may grant leave to take a subsequent deposition, and the parties, with the consent of any deponent who is not a party, may stipulate that a subsequent deposition be taken.

(Code Civ. Proc., §2025.610, subd.

(a)-(b).)

Moving Defendants contend that

Plaintiff was originally deposed over three years ago on April 26, 2023, before Moving Defendants had made their initial appearance and before Moving Defendants' current counsel associated into the case. Further, Moving Defendants were not served with the Notice of Amended Deposition, and none of the counsel who attended the deposition represented Moving Defendants' interests. Thus, Moving Defendants did not have an opportunity to ask Plaintiff questions at deposition regarding the underlying incident.

Further, Moving Defendants argue

that Plaintiff's circumstances have changed dramatically. At the time of her deposition, she claimed several injuries and did not know if she would be able to return to work full time as a school speech language pathologist.

Now, she has undergone surgery, completed a Ph.D. program, got married, started her own business, and gave birth to her first child. Plaintiff has further stipulated to dismissing certain injury claims and has amended others.

In opposition, Plaintiff argues that

Malibu Triathlon Productions, LLC ("Malibu Triathlon"), which employed Lindner and Generic Events, answered the Complaint in this case on July 15, 2022,

nearly a year before Plaintiff was deposed, attended the deposition, had an opportunity to ask questions in both its and Moving Defendants' allied interests. Further, Plaintiff argues that her evolving injury claims do not require an additional deposition because Defendants have the benefit of the Fraix independent medical examination, which was conducted within the last six months. Thus, Plaintiff argues there is no good cause for a second deposition.

In reply, Moving Defendants argue there is no foundational basis for Plaintiff's contention that Malibu Triathlon employed Lindner and Generic, or adequately represented their interests at the first deposition.[1] Further, Moving Defendants argue that Dr. Fraix's examination is an inadequate substitute for a second deposition because they serve different purposes, and Moving Defendants have a right to question Plaintiff under oath, assess credibility, obtain binding admissions, clarify ambiguities, and investigate other factual information.

Technically speaking, although Moving Defendants were subsequently represented by the same counsel as Malibu, at the time of the deposition, Moving Defendants had not yet appeared in the case, were not served with a notice of deposition, and their interests were not officially represented at the deposition. To that end, Code of Civil Procedure, section 2025.610, subdivision (a), which bars "any party" who has already taken a person's deposition from taking a second deposition, absent good cause, does not bar Moving Defendants from noticing Plaintiff's deposition, because they never took or participated in Plaintiff's first deposition.

Nevertheless, non-expert discovery is closed, as the 15-day jury trial is scheduled for August 17, 2026. Thus, whether Moving Defendants' motion to take Plaintiff's deposition hinges on whether the Court grants their concurrent motion to continue the trial and related discovery and motion cut-off dates.

2.

Motion to
Continue Trial

California Rules of Court, rule
3.1332(c), provides:

Although continuances of trials are disfavored, each request for a

continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

Factors the Court considers in ruling on a motion for continuance include:

(1) The proximity of the trial

date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Rule 3.1332(d).)

Moving

Defendants move for an order continuing the trial and all related pretrial discovery and motion cut-off dates for the following reasons:

1. To allow time for defendants to confirm a Urologist/GI in Texas to conduct an additional necessary medical examination of Plaintiff, which the parties stipulated to in light of the Court's order for the parties to meet and confer vis-à-vis Plaintiff's motion for a protective order.
2. To conduct a second session of the deposition of the at-fault driver Zoe Dimmel-Alexeff, who has since moved out of state.
3. To conduct the deposition of responding Los Angeles County Sheriff's Deputy J. McGee, who has moved out of state.
4. To conduct the second deposition of Plaintiff.
5. To allow for the deposition of Plaintiff's husband, which did not go forward on June 16, 2026, but which the parties are in the process of rescheduling.
6. To allow for the depositions of Bernardo Carillo.
7. To serve additional written discovery on Plaintiff.

Moving Defendants point out that their current counsel substituted into this case only in April 2026, and has been working diligently since then to procure all necessary discovery but simply needs more time. Additionally, Moving Defendants argue they are awaiting responses to out-of-state subpoenas issued to the universities Plaintiff attended after the date of the accident. Further, the parties have struggled to schedule the second session of the other named Defendant in this matter, Zoe Dimmel-Alexeff, an influencer whose work requires frequent international travel.

While the Court finds that Moving Defendants have not been diligent in pursuing and obtaining the above-listed discovery, because new counsel has presented a plan for the specific outstanding discovery needed, and because Plaintiff does not oppose the continuance, the Court will grant the requested continuance.

However, no further continuances will be granted absent a showing of good cause. The Court notes that insufficient diligence in pursuing and obtaining the above-listed discovery does not constitute good cause. To the extent motion practice is anticipated, the parties are advised to plan for and schedule those motions sufficiently in advance of the new discovery cut-off and trial dates.

CONCLUSION AND ORDER

For the foregoing reasons, the Court grants both motions. Plaintiff shall sit for a second deposition within thirty (30) days' of notice of the Court's order, or as otherwise agreed to in writing by the parties.

Further, the Court grants Moving Defendants' unopposed motion to continue the trial and related discovery and motion cut-off dates, and orders as follows:

- The Trial is continued to December 14, 2026 at 10:00 A.M. in Department 207. The Court notes that the 5-year deadline to bring the action to trial is January 27, 2027.

- The Final Status Conference is continued to November 6, 2026 at 9:30 A.M. in Department 207.

- Non-Expert Discovery is re-opened for the limited purpose of completing the following:

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To allow time for defendants to confirm a Urologist/GI in Texas to conduct an additional necessary medical examination of Plaintiff, which the parties stipulated to in light of the Court's order for the parties to meet and confer vis-à-vis Plaintiff's motion for a protective order.

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To conduct a second session of the deposition of the at-fault driver Zoe Dimmel-Alexeff, who has since moved out of state.

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To conduct the deposition of responding Los Angeles County Sheriff's Deputy J. McGee, who has moved out of state.

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To conduct the second deposition of Plaintiff.

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To allow for the deposition of Plaintiff's husband, which did not go forward on June 16, 2026, but which the parties are in the process of rescheduling.

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To allow for the depositions of Bernardo Carillo.

o

To serve additional written discovery on Plaintiff.

· Non-Expert

Discovery shall close on October 30, 2026.

· Expert Discovery

shall be associated with the new trial date of December 14, 2026.

· The Court issued a

Trial Preparation Order on January 9, 2026.

The Parties shall obtain a copy of the Order and comply with it.

· Per the Discovery

Act, the Court orders the parties to meet and confer forthwith to schedule and complete all Non-Expert Discovery and to prepare for the completion of Expert Discovery to obviate the need for a further continuance of the Trial.

· No further

continuance of the Trial absent sufficient good cause.

Further, the Court will enter

the proposed Orders lodged on June 22, 2026 in conformity with the Court's ruling.

Moving Defendants shall
provide notice of the Court's Orders and file the notice with a proof of
service forthwith.

DATED: July 23, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court

[1] To the extent Plaintiff attempts to raise evidentiary
objections in the body of her opposition, the Court overrules the objections.